

## CASE SUMMARY

# State v. Arjun

Ct. Case No. 489/2021 | CNR DLST01-007309-2021 | Special Court (Electricity), South District, Saket Courts, New Delhi

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| COURT            | Special Court (Electricity), South District, Saket Courts, New Delhi                                                                                                                                                                                                                                      |
| JUDGE            | Sh. Vivek Kumar Gulia, Addl. Sessions Judge                                                                                                                                                                                                                                                               |
| DATE OF JUDGMENT | date of judgment (date of inspection / offence: date of inspection)                                                                                                                                                                                                                                       |
| PARTIES          | State (BSES Rajdhani Power Ltd.) v. Arjun (alleged contractor) — the co-accused Taraq having been declared a proclaimed person                                                                                                                                                                            |
| STATUTES INVOKED | Section 135 (and third proviso to s. 135(1)), Electricity Act, 2003; Sections 101, 106 & 65B, Indian Evidence Act, 1872; Sections 251 & 313, Cr.P.C.                                                                                                                                                      |
| RESULT           | <b>Acquitted — complaint dismissed.</b> A duly certified video existed, but the masked person in it gave his name as ‘Barun’; the claim that he was ‘Arjun’ rested on resemblance alone. The accused stands acquitted of the charge under Section 135 read with Section 154 of the Electricity Act, 2003. |

## CHARGE BEFORE THE COURT

Whether the accused Arjun was the person who abstracted electricity through the tap shown in the inspection, so as to attract Section 135 (with Section 154) of the Electricity Act, 2003; and whether the prosecution proved that the masked person in the video was in fact the accused.

## FACTS

BSES Rajdhani alleged a direct theft (assessed at about Rs. 18.19 lakh) and, unusually, had a properly certified Section 65B video of the inspection. The difficulty, again, was identity: the person at the inspection wore a mask and disclosed his name as “Barun,” yet the prosecution claimed he was “Arjun” on the strength of resemblance. The mask was never removed, no identity document was demanded on video, and the information linking the accused came from a co-accused (Taraq) who had been declared a proclaimed person; the inspection documents recorded the name Arjun, but the video did not confirm that the masked man was the accused.

On a complaint under Section 135 (with Section 154), the accused pleaded not guilty. Under Section 313 Cr.P.C. the accused denied the allegations. The Court held that a certified video does not prove identity where the person in it is masked and names himself differently.

## REASONING OF THE COURT

### HEADNOTE

A properly certified video of the theft does not convict where it cannot fix the identity of the offender: the person recorded was masked, disclosed a different name (“Barun,” not the accused “Arjun”), was never asked to remove the mask or produce identification, and was linked to the accused only by resemblance and by a proclaimed co-accused. Identity, not the tap, was the missing foundational fact.

**The presumption arises only after the prosecution proves the foundational facts.** The Court proceeded from first principles: the third proviso to Section 135(1) is a reverse-onus clause that operates only once the prosecution has proved, beyond reasonable doubt, both an unauthorised abstraction of electricity and the identity of the accused as its author or the consumer of the premises. Until that foundation is laid the ordinary burden rests on the prosecution, and where two views are reasonably possible the one favouring the accused must be preferred.

**The person in the video was masked and self-named differently.** The inspection was videographed with a valid Section 65B certificate, but the person recorded wore a mask and gave his name as “Barun”; the prosecution’s case that he was the accused “Arjun” rested on resemblance, not proof.

**No step was taken to establish identity.** The mask was never removed and no identity document was demanded on video; the ordinary means of fixing who was present were simply not used, so the certified recording proved the tap but not the tamperer.

**The link to the accused came from a proclaimed co-accused.** The information connecting the accused derived from a co-accused (Taraq) who had been declared a proclaimed person; such a source could not supply the certain identification the video lacked.

**The cumulative doubt entitled the accused to acquittal.** With a masked person who named himself ‘Barun’, identified as the accused only by resemblance and by a proclaimed co-accused, with no mask removal or identity check on video, the foundational facts were not established to the standard the law requires. The statutory presumption never arose, the benefit of the doubt went to the accused, and the charge under Section 135 read with Section 154 of the Electricity Act, 2003 was not brought home.

## INTERPRETATION OF THE ELECTRICITY STATUTES

### ELECTRICITY ACT, 2003

#### Section 135(1) — Theft of Electricity: the Foundational Facts

The Court read Section 135(1) as requiring the prosecution first to prove, beyond reasonable doubt, the foundational facts — an unauthorised or artificial abstraction of electricity *and* the identity of the accused as its author or as the consumer/user of the inspected premises. Only upon proof of those facts does the offence, or the abetment of it, arise; a bare allegation, or mere presence at or near the spot, is not enough. As the Act does not define “dishonestly,” Section 24 IPC is imported, but dishonest intention presupposes an abstraction first fixed on the accused.

#### Third Proviso to Section 135(1) — When the Presumption Does Not Arise

The reverse-onus presumption of dishonest use operates only after the prosecution has established the artificial means of abstraction and connected it to the accused. Where that foundation fails — the inspection is self-contradictory, the user’s identity is not fixed, material witnesses are withheld, the electronic record is not duly certified under Section 65B, or the officer’s authority to complain is not proved — the presumption never arises. The ordinary rule then governs: the prosecution must prove guilt beyond reasonable doubt, and where two views are reasonably possible the one favouring the accused is adopted.

## HELD

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The prosecution having failed to prove the foundational facts — a masked person who named himself ‘Barun’, identified as the accused only by resemblance and by a proclaimed co-accused, with no mask removal or identity check on video — the charge under Section 135 read with Section 154 of the Electricity Act, 2003 was not established beyond reasonable doubt. **The accused is accordingly acquitted, and the complaint is dismissed.**

## SIGNIFICANCE

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A certified video, a very large assessment — yet an acquittal, because a masked man named himself ‘Barun’. Four propositions stand out:

- **A certified video proves the act, not necessarily the actor.** Where the person recorded is masked and self-names differently, Section 65B admissibility does not translate into proof of identity.
- **Resemblance is not identification.** Claiming the masked man “looks like” the accused cannot bridge a self-declared different name.
- **Elementary identity steps must be taken.** Failing to remove the mask or demand identification on video leaves identity unproved.
- **A proclaimed co-accused is a weak source of identity.** Identification resting on an absconding co-accused cannot supply certainty.

## CITATIONS

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The decision turned wholly on the evidence; neither side pressed any case authority, and the Court decided the matter on the record before it.

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*This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.*